

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR MAY 14, 2026, AT 8:30 A.M.

Turning to the question of whether the number of hours expended were reasonable, the court has carefully reviewed the invoices attached as Exhibit A to the declaration of Jorge Acosta, which supports 6.7 hours by Courtney Perdue, 7.8 hours by Christopher Urner, 22 hours by Jorge Acosta, 1.3 hours by Alexandra Sloan, 14.1 hours by Wojciech Kowalczyk, and 1.3 hours by Mary Zazueta.

The court determines 5.3 hours by Courtney Perdue, 6.4 hours by Christopher Urner, 16.3 hours by Jorge Acosta, 1.3 hours by Alexandra Sloan, 14.1 hours by Wojciech Kowalczyk, and 1.3 hours by Mary Zazueta are reasonable.

The court must next address whether the requests for \$695 per hour by Courtney Perdue, \$525 per hour by Christopher Urner, \$450 per hour by Jorge Acosta, \$350 per hour by Alexandra Sloan, \$250 per hour by Wojciech Kowalczyk, and \$250 per hour by Mary Zazueta are reasonable. Determining the reasonable amount of attorneys' fees is known as the lodestar method, that is, the number of hours reasonably expended multiplied by the reasonable hourly rate. (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095; *Serrano v. Priest* (*Serrano III*) (1977) 20 Cal.3d 25, 48–49.) The lodestar figure may then be adjusted, based upon factors specific to the case, to fix the fees at a fair market value for the legal services provided. (*PLCM Group v. Drexler*, 22 Cal.4th at p. 1095.)

The court has carefully reviewed the declaration of counsel and finds the hourly rates of \$400 per hour by Courtney Perdue, \$400 per hour by Christopher Urner, \$350 per hour by Jorge Acosta, \$300 per hour by Alexandra Sloan, \$150 per hour by Wojciech Kowalczyk, and \$150 per hour by Mary Zazueta are reasonable for similar legal services within Placer County.

Accordingly, plaintiffs' motion is granted in the amount of reduced attorneys' fees in the amount of \$13,085 and costs in the amount of \$1,466.23 for a total amount of \$14,551.23.

12. S-CV-0054252 KUDER, ANNETTE v. GENERAL MOTORS

Defendant's Motion for Summary Judgment or, Alternatively, for Summary Adjudication

Preliminary Matters

Plaintiff's objections are overruled in their entirety.

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Ruling on Motion

Defendants move for summary judgment or, in the alternative, summary adjudication as to plaintiff's complaint. A motion for summary judgment may be granted if "all the papers submitted show that there is no triable issue as to any material fact and the moving party is entitled to a judgment as a matter of law." (Code Civ. Proc. § 437c, subd. (c).) This is compared to summary adjudication that requires a showing that there is no merit to one or more of the causes of action. (*Id.* at § 437c, subd. (f)(1).) A motion for summary adjudication proceeds "in all procedural respects as a motion for summary judgment." (*Id.* at § 437c, subd. (f)(2).) In reviewing either motion, the trial court must view the supporting evidence, and inferences reasonably drawn from such evidence, in the light most favorable to the opposing party. (*Aguilar v. Atlantic Richfield Company* (2001) 25 Cal.4th 826, 843.) Defendant, as the moving party, bears the initial burden of establishing that "one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action." (Code Civ. Proc. § 473c, subd. (p)(2).) Once that burden is met, the burden shifts to the "plaintiff to show that a triable issue of one or more material facts exists as to the cause of action or a defense." (*Ibid.*) Pursuant to the "golden rule" of summary judgments, "if it is not set forth in the separate statement, it does not exist." (*California-American Water Co. v. Marina Coast Water Dist.* (2022) 86 Cal.App.5th 1272, 1296.)

Plaintiff alleges two causes of action: (1) Violation of the Federal Magnuson-Moss Warranty Act and (2) Breach of Express Warranty Under the California Commercial Code.

A breach of express warranty under California Commercial Code section 2313 requires plaintiff to establish the following elements:

(1) an express warranty (Com.Code, § 2313) to repair defects given in connection with the sale of goods; (2) the existence of a defect covered by the warranty; (3) the buyer's notice to the seller of such a defect within a reasonable time after its discovery (*id.*, § 2607, subd. (3)(A)); (4) the seller's failure to repair the defect in compliance with the warranty; and (5) resulting damages
(*Orichian v. BMW of North America, LLC* (2014) 226 Cal.App.4th 1322, 1333–34.)

Importantly, a breach of the express warranty claim under the Commercial Code requires privity with the buyer and seller. (*Ballesteros v. Ford Motor Co.* (2025) 109 Cal.App.5th 1196, 1217; *Davis v. Nissan North America, Inc.* (2024) 100

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Cal.App.5th 825, 836–38; *Della Shaker v. Mercedes-Benz USA LLC et al* (C.D. Cal., Apr. 17, 2026, No. 2:25-CV-08732-SVW-MAR) 2026 WL 1182812, at *2.)

Here, defendant meets its burden to show that plaintiff cannot establish the parties were in privity when plaintiff purchased the vehicle. (UMF Nos. 2–8.) Accordingly, the burden shifts to plaintiff to raise a triable issue of material fact.

Plaintiff does not thereafter meet their burden to raise a triable issue of material fact.

The violation of the Federal Magnuson-Moss Warranty Act cause of action thereafter fails as a matter of law because there are no state law claims to attach to. (*Clemens v. DaimlerChrysler Corp.* (9th Cir. 2008) 534 F.3d 1017, 1022.)

Plaintiff’s request for the court to treat the motion for summary judgment as a motion for judgment on the pleadings is denied because defendant is not challenging the sufficiency of the pleadings in its motion for summary judgment. (*Los Angeles Unified School Dist. v. Torres Construction Corp.* (2020) 57 Cal.App.5th 480, 493.)

Accordingly, defendant’s motion for summary judgment is granted.

13. S-CV-0054742 SOUZA, EVAN v. EHEALTH INSURANCE SERVICES

Defendant’s Motion to Compel Arbitration and Stay Proceedings

A request to compel arbitration under the FAA may be brought in state court. (*Southland Corp. v. Keating* (1984) 465 U.S. 1, 16; *Main v. Merrill Lynch, Pierce, Fenner & Smith, Inc.* (1977) 67 Cal.App.3d 19, 24, disapproved of on other grounds in *Rosenthal v. Great Western Financial Securities Corp.* (1996) 14 Cal.4th 394.) The arbitration statutes evidence a strong public policy in favor of arbitration that is frequently approved and enforced by the courts. (*Madden v. Kaiser Foundation Hospitals* (1976) 17 Cal.3d 699, 706; *Laswell v. AG Seal Beach, LLC* (2010) 189 Cal.App.4th 1399, 1405.) The FAA governs a contractual arbitration where there is a written contract involving interstate or foreign commerce or maritime transactions. (9 U.S.C. §§1, 2.) Where the parties incorporate the FAA into the agreement, the FAA governs a party’s request to compel arbitration. (*Victrola 89, LLC v. Jaman Properties 8 LLC* (2020) 46 Cal.App.5th 337, 346.)

A threshold question for any motion to compel arbitration is whether an agreement to arbitrate exists between the parties. (*Cruise v. Kroger Co.* (2015) 233 Cal.App.4th 390, 396.) Defendant carries this initial burden of proving, by a preponderance of the